

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 32
JUDICIAL OFFICER: JONI T HIRAMOTO
HEARING DATE: 01/23/2026

ALL APPEARANCES WILL BE BY ZOOM

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of his or her decision to appear and of the issues to be argued.

Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Local Rule 3.43(2).) CourtCall will **NOT** be used by D32. Zoom is approved for all hearings except Issue Conferences and Trials.

Dept. 32's telephone number is: (925) 608-1132.

NOTE: In order to minimize the risk of miscommunication, Dept. 32 prefers and encourages email notification to the department of the request to argue and specification of issues to be argued.

Dept. 32's email address is: dept32@contracosta.courts.ca.gov.

Submission of Orders After Hearing in Department 32 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/1613360625?pwd=pSvVmR75t9Q2H5zOgagi9rbG4xeTUM.1>

Meeting ID: 161 336 0625

Passcode: 180770

Law & Motion

1. 9:00 AM CASE NUMBER: C22-01461
CASE NAME: KANWAL SODHI VS. JONATHAN BORNSTEIN
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: BORNSTEIN, JONATHAN
TENTATIVE RULING:

Withdrawn; hearing vacated.

2. 9:00 AM CASE NUMBER: C23-00060
CASE NAME: DARYL MERRITT VS. ANDREA MERRITT
*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: MOSES S. BARDAVID
FILED BY: MERRITT, ANDREA HAVERLUK
TENTATIVE RULING

The unopposed motion of attorney Moses S. Bardavid is moot as the Stipulation to Substitution of Counsel has already been filed.

3. 9:00 AM CASE NUMBER: C23-02669
CASE NAME: ALDVIN SCHAKANOVICH VS. LINDA WILLIAMS
*HEARING ON MOTION IN RE: TO SET ASIDE DEFAULT
FILED BY: RW WILLIAMS CONSTRUCTION, INC.
TENTATIVE RULING:

Before the Court is RW Williams Construction, Inc.'s motion to set aside default ("Motion").

Defendant's Motion is **denied** for the reasons set forth below.

Initial Consideration

"[E]lectronic exhibits **must include** electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit." (Cal. R. Ct. 3.1110 (f)(4) emphasis added.) Plaintiff's counsel filed a declaration that attaches seven exhibits that span over thirty pages. Plaintiff's counsel fails, however, to include electronic bookmarks to any of the exhibits. Counsel is reminded to comply with all Rules of Court going forward.

Procedural History

Plaintiffs filed their initial complaint on October 20, 2023, naming California Compass and one of its real estate agents, Linda Williams, as defendants. Plaintiffs took the deposition of Rick Williams, the owner of moving Defendant Williams Construction, Inc. on February 25, 2025. Attorney Jeff Hubins (current counsel) represented Mr. Williams during the deposition. His representation was limited to defending the deposition.

On March 17, 2025, Plaintiffs filed a Doe Amendment substituting RW Williams Construction, Inc. as Doe Number One. RW Williams was served on April 3, 2025 – making any responsive pleading due on or before Monday, May 5. On April 17, Plaintiff served discovery on California Compass and copied

attorney Hubins. Attorney Hubins informed the parties that he did not represent RW Williams, and that his earlier representation at the deposition was limited to that deposition. Plaintiffs' counsel responded, noting that Mr. Williams was served as a Doe Defendant and noting Mr. Hubin's statement of 'non-representation' and indicated he would not be served going forward.

Thereafter, as no response had been filed by RW Williams, Plaintiffs sought and default was entered against RW Williams on June 13, 2025. Attorney Hubins contacted Plaintiffs' counsel on June 19 noting that RW Williams was then in the process of retaining his firm to represent it in the lawsuit. He indicated he would 'file a response in the next week or so.' Plaintiffs' counsel responded noting Mr. Hubin's prior denial of representation and RW William's failure to timely respond.

Attorney Hubins filed the instant motion to set aside on behalf of RW Williams on July 31, 2025 – approximately six weeks later.

Analysis

Accompanying Opposition

As noted by Plaintiffs, to satisfy the requirements for relief under section 473(b), the motion “***shall be*** accompanied by a copy of the answer or other pleading proposed to filed therein, ***otherwise the application shall not be granted...***” (Cal. Code Civ. Proc. § 473 (b) emphasis added.)

Even if a motion to set aside is timely, it is “nonetheless properly denied [if] it was unaccompanied by a proposed responsive pleading.” (*Jimenez v. Chavez* (2023) 97 Cal.App.5th 50, 63.) The purpose of needing to file a proposed response “is to compel the delinquent party to demonstrate his or her good faith and readiness to proceed on the merits,” and to ensure that ‘courts do not become a sanctuary for chronic procrastination and irresponsibility on the part of either litigants or their attorneys.’” (*Ibid.* citations omitted.)

While Plaintiffs highlighted this defect in the moving papers, RW Williams failed to remedy it with his reply papers – which do not include a ‘proposed answer’ or other responsive pleading. On that basis alone, their motion must be denied.

California Code of Civil Procedure Section 473, subdivision (b)

Section 473, subdivision (b) “includes a discretionary provision, which applies permissively, and a mandatory provision, which applies as of right.” (*Minick v. City of Petaluma* (2016) 3 Cal.App.5th 15, 25.) “Although this bifurcation is not demarcated in any internal subtitling, it is plainly evidence in the textual structure of the statute.” (*Ibid.*)

According to the heading of RW Williams’ argument, it is moving to set aside the default based on the mandatory provisions of California Code of Civil Procedure section 473, subdivision (b). (See Opp. at section 1. a.) It also argues that the ‘mistake’ that led to their failure to timely file a response to the Complaint was attorney Hubins’ mistake. (Opp. at 6:3-4; Hubins Decl. ¶ 12.) As such, the Court will analyze the motion under this provision of the Code.

Mandatory Relief

“[T]he court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney’s sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect vacate any . . . resulting ... dismissal entered against his or her client....” (Code Civ. Proc. § 473, subd. (b).)

Relief under CCP § 473, subdivision (b) does not require Counsel to explain why he made the mistake, nor does it require him to show that the mistake was excusable. (*Martin Potts & Associates, Inc. v. Corsair, LLC* (2016) 244 Cal.App.4th 432, 439-440 “[T]he text of section 473 subdivision (b) does not require an explanation of reasons as a prerequisite to mandatory relief.”) Accordingly, 473(b) “at most demand[s] an attorney’s candid, full, and straightforward acknowledgment of his or her error; they do not speak to the reasons for those errors.” (*Ibid.*)

The key to relief under the mandatory provision is that the party’s counsel submit a declaration explaining that the basis for the dismissal was his fault. Here, attorney Hubins submits a declaration indicating that he explained to RW Williams that they need not respond to the Complaint in that their insurance carrier would do so. (Hubins Decl. ¶ 12.)

The problem with the declaration, as noted by Plaintiffs, is that attorney Hubins makes it explicitly clear that at that time he did **not** represent RW Williams. For example, earlier in the declaration he explains that while he represented Rick Williams, the owner of RW Williams, during his deposition on February 25, 2025: “My representation was limited to just the deposition.” (¶ 2.) As such, his representation – such as it was – ended on February 25 when the deposition ended.

The Doe Amendment naming RW Williams was not filed until March 13, 2025, and served on April 3, 2025. All of this occurred while attorney Hubins did **not** represent RW Williams. He again makes this clear when he notes that when he was served with discovery served by Defendant Compass he “informed the parties [he] only represented RW for the purpose of the deposition and that there was no need to include [him] on the service list.” (¶ 4.) Attorney Hubins notes that he reached out to RW’s insurance carrier in June and July but did not receive any response. “As such, RW retained [him] for representation.” (¶ 9.) Thus, while no specific date of representation is indicated, it could not have occurred prior to July 2025. As noted above, the default was entered on June 13 – well before Mr. Hubins was retained.

The purpose of the mandatory relief provisions added to section 473, subdivision (b) in 1988, “is to relieve the innocent client of the burden of **the attorney’s fault**, to impose the burden on the erring attorney, and to avoid precipitating more litigation in the form of malpractice suits.” (*Metropolitan Service Corp. v. Casa de Palms, Ltd.* (1995) 31 Cal.App.4th 1481, 1487.) The entry of default cannot be caused by attorney Hubin’s actions because he was not RW William’s counsel at the time the default was entered.

“Because Attorney [Hubins] was not representing defendants at the time the default was entered, we find as a matter of law, that he was not the proximate cause of the entry of default as defined in the ‘unless clause.’” (*Cisneros v. Vueve* (1995) 37 Cal.App.4th 906, 912.) In such a situation, “defendants were not entitled to relief under the attorney affidavit provisions of section 473.” (*Ibid.*)

On Reply, RW Williams does not address the above argument or case law. Instead, it argues that Plaintiffs’ opposition “is based entirely on ‘old’ case law which was decided prior to 1988,” when the

mandatory relief provision was added to section 473.) While some of the cases cited by Plaintiffs do pre-date that timeframe, the above cases do not.

Plaintiffs' Opposition includes discussions related to the discretionary relief prong of section 473. As discussed above, RW Williams did not move under that provision (which appears to be confirmed by the failure to address those arguments in the Reply), so the Court does not address those arguments here.

Based on the above, Defendant RW Williams' Motion is **denied**.

4. 9:00 AM CASE NUMBER: C23-03249

CASE NAME: AHARON POLIKER VS. INSULATION GURU, INC DBA HVAC GURU

***HEARING ON MOTION IN RE: LEAVE TO FILE 1ST AMENDED COMPLAINT**

FILED BY: POLIKER, AHARON

TENTATIVE RULING:

The unopposed motion is continued on the court's motion to March 27, 2026 at 9:00 a.m., Department 32, for proof of service of a Notice of Motion complying with CCP 1010. Hearing on this motion was previously continued from October 3, 2025 to January 3, 2026 for lack of notice.

On November 14, 2025, Plaintiff/Cross-Defendant Aharon Poliker filed a document purporting to be notice of motion. The pleading was styled, "Plaintiff / Cross-Defendant AHARON POLIKER'S NOTICE IN SUPPORT OF THEIR MOTION FOR LEAVE TO FILE FIRST AMENDED COMPLAINT." The face of the notice contained the date and time and department where the motion would be heard. However, the notice failed to state "the grounds upon which the motion would be made and the papers, if any, upon which it is to be based," as required by CCP 1010. Instead of a code compliant notice, the document erroneously attached a copy of the court's tentative ruling from a hearing held on January 6, 2025.

Given that over six months have passed since the original filing of papers in support of this motion, the court orders the moving party to re-serve all parties with the motion and the papers upon which the motion is based.

5. 9:00 AM CASE NUMBER: C24-03330

CASE NAME: JOHN WISDOM VS. CITY OF RICHMOND

HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT

FILED BY: CITY OF RICHMOND

TENTATIVE RULING:

Order stipulating to SAC filed 1/15/26.

6. 9:00 AM CASE NUMBER: C25-00506

CASE NAME: ELISA ROXAS VS. SANTOS RODRIGUEZ

HEARING IN RE: MOTION TO COMPEL

FILED BY:

TENTATIVE RULING:

The Defendant's "Motion to Compel" is denied. Defendant served one document with mixed discovery requests twice on the Plaintiffs. That one document ("the Discovery") contained a request for responses to Form Interrogatories, Special Interrogatories, Requests for Production of Documents, and Requests for Admissions.

There are several problems with the Discovery served on the plaintiffs.

First, the Defendant improperly combined different discovery methods into one document. Requests for Admissions must be set forth in a separate document. They may not be combined "in a single document" with interrogatories or any other discovery method. (Cal. Code of Civil Procedure (CCP) § 2033.060(h)) For clarity, each discovery method should be contained in a separate document.

Second, the Discovery lacked mandatory opening paragraphs. For Requests for Admissions, CCP requires that "the first paragraph immediately before the title of the case must show: the identify of the party requesting admissions, the set number, and the identify of the party to whom the requests are directed. CCP §2033.060(a)." Example: "Defendant Santos Rodriguez's First Set of Requests for Admissions to Plaintiff Elisa Roxas."

Next, instead of using the actual form (DISC-001) for Form Interrogatories, Defendant referred to the form by number and listed the number of the interrogatories for which he wanted answers. He did not serve a copy of the DISC-001 on the Plaintiffs. The Plaintiffs received a list of numbers, not any actual text of an interrogatory. The Form Interrogatories are optional form, but a party propounding those interrogatories should use the form, or at the very least, write the words of each interrogatory in their request. Defendant did neither. The Plaintiffs were forced to research the text of the interrogatories in order to respond to them.

Plaintiffs object that Defendant did not specify a timeframe for a response but party is not obligated to do so.

Plaintiffs assert they in fact responded to the Defendant's requests and attached a proof of service showing personal service of their response on October 3, 2025. A motion to compel may be heard even if tardy responses are served after the motion is filed. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th, 390, 410-411.

Defendant sent a letter dated September 15, 2025 notifying the Plaintiffs that their responses were due September 15, 2025, and stating that unless he received full and verified responses without objection within ten (10) calendar days from this letter, I will notify the Court of your non-compliance and file a motion to compel further responses." This letter was delivered to Plaintiffs by Federal Express on September 18, 2025. Defendant does not describe any further attempts to meet and confer regarding the Discovery. Defendant filed this motion September 30, 2025.

Defendant demanded monetary sanctions of \$350.00 but did not give any basis for that figure. Section 2023.040 of the CCP provides:

A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. The notice of motion shall be supported by a memorandum of points and authorities and accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought.

Defendant is self-represented. It does not appear any expenses were incurred in the preparation of this motion. He did not submit a declaration setting forth facts supporting his demand for \$350.00 in monetary sanctions.

The motion to compel is denied. The request to have the Requests for Admission deemed admitted is denied because the Request for Admissions was improperly combined with other discovery methods. Plaintiffs served their responses to the interrogatories months ago--thus the court will not compel them to respond at this time. There is no contention that their responses were insufficient. The request for monetary sanctions is denied because there is no factual basis supporting the amount sought.

7. 9:00 AM CASE NUMBER: C25-00782
CASE NAME: AMIN SOBHANI VS. MERCEDEZ-BENZ USA, LLC,
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: MERCEDEZ-BENZ USA, LLC,
TENTATIVE RULING

Hearing is continued on the Court's motion to May 1, 2026, 9:00 a.m., Dept. 32.

8. 9:00 AM CASE NUMBER: C25-01567
CASE NAME: ALEXIS DEAN VS. MONTE GARDENS ELEMENTARY SCHOOL (MOUNT DIABLO UNIFIED SCHOOL DISTRICT)
HEARING ON DEMURRER TO: COMPLAINT
FILED BY:
TENTATIVE RULING

Hearing is continued on the Court's motion to January 30, 2026, 9:00 a.m., Dept. 32

9. 9:00 AM CASE NUMBER: C25-01663
CASE NAME: AMBER CLEVELAND VS. DANTE LUCCA
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL**
FILED BY:
TENTATIVE RULING:

The unopposed motion of Jason G. Eisenberg to be relieved as counsel for Plaintiff Amber Cleveland is granted.

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. 284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination upon the consent of both client and attorney, or upon order of the court, upon the application of either client or attorney, after notice from one to the other.

Plaintiff's Counsel has complied with the provisions of this rule and statute providing notice to client and supporting his motion with a declaration articulating the reasons for withdrawal.

After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of Plaintiff's Counsel to be Relieved as Counsel of Record.

Counsel Eisenberg is to re-submit the Proposed Order Granting Attorney's Motion to be Relieved as Counsel (Judicial Council Form MC-053) with the correction that the next hearing date is a Further Case Management Conference in Dept. 32 on May 4, 2026 at 8:30 am. The court will execute the revised order.

The withdrawal is effective upon Counsel Eisenberg's filing the proof of service of the signed order on his client and all parties.

10. 9:00 AM CASE NUMBER: C25-02058
CASE NAME: BOARDWALK PORT LLC VS. EARTHGRID PBC
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: EARTHGRID PBC

TENTATIVE RULING:

Defendant Earthgrid PBC ("EarthGrid") brings the instant general and special demurrer to the complaint of Boardwalk Port LLC ("Boardwalk"). The complaint alleges a claim for breach of written contract/lease agreement. EarthGrid argues that the complaint fails to state facts sufficient to constitute a cause of action because Boardwalk did not attach the complaint, quote it verbatim, or detail the legal effects and obligations relating to the contract, and does not plead sufficient facts to establish Boardwalk's performance or EarthGrid's breach. EarthGrid also argues that these facts make the complaint uncertain.

Boardwalk argues that it properly alleged the substance of the contract's relevant and material terms and adequately pled the legal effect of the lease.

On reply, EarthGrid reiterates its view that Boardwalk was required to attach the contract to the complaint or quote the provision at issue and that Boardwalk's performance was not pled with specificity.

For the reasons discussed below, the Court overrules EarthGrid's demurrer. EarthGrid is ordered to file and serve its answer or other responsive pleading to the complaint within 20 days of entry of this order.

Meet and Confer

The meet and confer requirement has been satisfied. (Steinberg Decl., ¶¶ 1-4; Code Civ Proc., § 430.41.)

Request for Judicial Notice

EarthGrid requests the Court to take judicial notice of the complaint at issue in this matter, filed by Boardwalk. The Court grants EarthGrid's request for judicial notice.

Legal Standard

In ruling on a demurrer, a court must accept as true all allegations of fact contained in the complaint. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1404-1405.)

Questions of fact cannot be decided on demurrer. (*Berryman v. Merit Prop. Mgmt., Inc.* (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the sufficiency of the complaint, a court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718, fn.7.) "[A]t the demurrer stage the complaint must be construed in the light most favorable to the plaintiff." (*Wilson v. Houston Funeral Home* (1996) 42 Cal.App.4th 1124, 1138.)

Background

Boardwalk and EarthGrid entered into a written lease agreement on October 30, 2023, whereby Boardwalk would lease to EarthGrid real property located at 1150 Brickyard Cove, Richmond, California, for a term of five years and two months, beginning November 1, 2023. (Demurrer MPA, p. 2.) Boardwalk alleges that it agreed to and did install electric vehicle chargers as an inducement to the contract and now seeks to recover the costs associated with that, but EarthGrid disputes this characterization. (*Id.* at pp. 2-3.)

Boardwalk alleges that EarthGrid breached the agreement because it failed to make its lease payment starting on or around June 2025. (Complaint, ¶ 11.) Boardwalk then served a three-day notice to pay rent or quit on or about June 12, 2025. (*Id.* at ¶ 12.) Boardwalk also alleges that EarthGrid further breached the lease when it abandoned the premises in July 2025. (*Id.* at ¶ 13.) Boardwalk alleges damages in the amount of \$1,784,485.60. (*Id.* at ¶ 14.)

Discussion – General Demurrer

The relevant standard here, due to Boardwalk not attaching a copy of the contract at issue to its pleadings and not quoting the contract verbatim, relates to the following requirement, "[i]n order to plead a contract by its legal effect, plaintiff must 'allege the substance of its relevant terms.'" (*McKell v. Washington Mutual, Inc.* (2006) 142 Cal.App.4th 1457, 1489; see also *Construction Protective*

Services, Inc. v. TIG Specialty Ins. Co. (2002) 29 Cal.4th 189, 198-199 ["In an action based on a written contract, a plaintiff may plead the legal effect of the contract rather than its precise language."].) To guide this analysis, "[t]he rules of pleading require, with limited exceptions not applicable here, only general allegations of ultimate fact. [Citations.] The plaintiff need not plead evidentiary facts supporting the allegation of ultimate fact. [Citation.] A pleading is adequate so long as it apprises the defendant of the factual basis for the plaintiff's claim." (*Id.* at pp. 1469-1470.)

In the *Construction Protective Services, Inc. v TIG Specialty Ins. Co.* case, the California Supreme Court discussed how a plaintiff may plead a contract by its legal effect.

In an action based on a written contract, a plaintiff may plead the legal effect of the contract rather than its precise language. [Citation.] CPS has chosen to proceed in this manner, and though the complaint could have been clearer, it satisfactorily alleged (1) that the insurance policy obligated TIG Insurance to defend and indemnify CPS against suits seeking damages, and (2) that under the terms of the policy, SHC's setoff claim fell within the scope of that contractual obligation. Whether CPS can prove these allegations (that is, whether its interpretation of the applicable contractual language is correct in light of what we have said here) remains to be seen, but the allegations are sufficient to establish a prima facie right to relief. (*Construction Protective Services, Inc. v. TIG Specialty Ins. Co.* (2002) 29 Cal.4th 189, 198-199.)

In the complaint at issue, Boardwalk alleges a variety of information about the contract, its terms, and their legal effect. (Complaint, ¶¶ 7-14.) Such as, the covenants appearing at sections 1.5, 13.3, and 58 of the contract, which are alleged to involve payment amounts agreed to and their effective dates, as well as promises relating to costs associated with actions done to induce EarthGrid to enter into the lease. (*Ibid.*) In the Court's view, the complaint sufficiently pleads the substance of its relevant terms.

EarthGrid argues in its reply that, "Plaintiff's failure to attach (or even quote from) the Lease ultimately renders it deficient under Code of Civil Procedure sections 430.10(e) and (f), particularly as to the parties' respective obligations and performance or breach (or excused nonperformance) of such obligations under the Lease." (Reply, p. 3:6-9.) However, this portrayal ignores the well-established authority that allows a party to plead the legal effect of a contract. (*McKell v. Washington Mutual, Inc.* (2006) 142 Cal.App.4th 1457, 1489; see also *Construction Protective Services, Inc. v. TIG Specialty Ins. Co.* (2002) 29 Cal.4th 189, 198-199 ["In an action based on a written contract, a plaintiff may plead the legal effect of the contract rather than its precise language."].) Boardwalk's failure to attach or quote from the Lease is not fatal, as a plaintiff may plead the legal effect of the contract rather than attach the contract or plead the terms verbatim.

EarthGrid's argument that Boardwalk needs to plead its allegations of performance with more specificity is unavailing as it is permissible to plead the conclusion of performance of a condition, if it is not contradicted by specific facts also alleged in the same complaint. (*Melican v. Regents of University of California* (2007) 151 Cal.App.4th 168, 174-175.) Here, Boardwalk's performance

allegation of the condition precedent in relation to the electric chargers is sufficient. (See Complaint, ¶¶ 9-10.)

EarthGrid argues that Boardwalk's allegations relating to its installation of electric vehicle chargers as an inducement are not in line with its view of those contract provisions and that the Court should sustain its demurrer and order Boardwalk to add additional allegations. (Reply, pp. 3:12-4:25.) This argument does not track the standard currently being evaluated on this demurrer as there is no requirement for one alleging the substance of the relevant terms of a contract to do so in line with the other side's view of those contract provisions. Because a demurrer tests only the sufficiency of the complaint, a court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718, fn.7.) While it is true that allegations of excuse or waiver of a condition precedent must be pled specifically, here there are no allegations of excuse or waiver of a condition precedent to trigger that requirement. (See Complaint, ¶¶ 9-10 [generally pleading a condition precedent and its satisfaction].)

A "breach" in a breach of contract cause of action may not be pled generally but instead requires the pleader to state facts showing a breach. (*Levy v. State Farm Mutual Automobile Ins. Co.* (2007) 150 Cal. App. 4th 1, 5-6.) Here, this is satisfied by Boardwalk's allegations of the dates that payments were due, the amounts due, and when EarthGrid failed to make those payments. (Complaint, ¶¶ 8, 11-12.)

The Court concludes that Boardwalk has properly pled its claim for breach of written contract and overrules EarthGrid's general demurrer.

Discussion – Special Demurrer

EarthGrid also specially demurs to the complaint for the same reasons it asserts in its general demurrer. (Demurrer MPA, p. 5:8-25.) EarthGrid's special demurrer is overruled because Boardwalk's complaint is not prejudicially uncertain due to the view of this Court that Boardwalk adequately pled the effect of the contract. (See, *A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 694-696.)

The Court orders EarthGrid to file and serve its answer to the complaint within 10 days of entry of this order.

11. 9:00 AM CASE NUMBER: C25-02154
CASE NAME: AZIZA SHARIFI VS. CITY OF CONCORD
HEARING ON PETITION IN RE: AN ORDER RELIEVING PLAINTIFF FROM GOVERNMENT ENTITY CLAIM
FILED BY: SHARIFI, AZIZA
TENTATIVE RULING:

Plaintiff Aziza Sharifi's petition for relief from the government claim requirement is **granted**.

On October 1, 2024, Plaintiff tripped and fell on a sidewalk and was injured. The six-month deadline to submit a government claim expired on April 1, 2025. On April 8, 2025, Plaintiff hired her

current attorneys. Plaintiff submitted an application for leave to present a late claim on April 23, 2025, which was denied on May 7, 2025. Plaintiff sued the City of Concord for dangerous condition of public property on July 28, 2025. Plaintiff filed this petition for relief from the government claim requirements on September 29, 2025.

In bringing this petition, Plaintiff declares that she was injured from a trip and fall on a sidewalk. She had pain and limited range of motion and sought medical care. (Sharifi dec. ¶13.) Plaintiff explains that she attempted to treat her injuries conservatively with physical therapy and other non-invasive methods. (Sharifi dec. ¶14.) Plaintiff did not initially consider pursuing legal action because she hoped that her condition would improve over time. (Sharifi dec. ¶14.) When Plaintiff's symptoms persisted and her doctors recommended more extensive treatment, she started to explore legal representation. (Sharifi dec. ¶18.) Plaintiff retained her lawyers on April 8, 2025, and only learned of the need to file a government claim after she retained her lawyers. (Sharifi dec. ¶19-10.)

The petition seeks relief based on Petitioner's mistake, inadvertence, surprise or excusable neglect in failing to timely file a government claim. Government Code section 946.6(c)(1) requires the trial court to grant a petition for relief from timely filing a government claim if (1) the court finds that an application for leave to present a late claim was made within a reasonable time, not to exceed one year after accrual of the claim, (2) the application was denied or deemed denied, and (3) the failure to present the claim was through mistake, inadvertence, surprise, or excusable neglect. (Government Code §946.6(c)(1); see also *Ebersol v. Cowan* (1983) 35 Cal.3d 427, 431-432.) The standard for mistake, inadvertence, surprise, or excusable neglect is the same as under Code of Civil Procedure section 473 for relieving a party from a default judgment. (*Ebersol, supra*, 35 Cal.3d at 435.) As it is a remedial statute, a trial or appellate court must resolve any doubts in favor of the petition. (*Ibid.*)

If the petitioner meets his burden of showing that the failure to present the claim was through mistake, inadvertence, surprise, or excusable neglect then the request should be granted unless the government agency can establish prejudice arising from the failure to file a timely claim. (*Dep't of Water & Power v. Superior Court* (2000) 82 Cal.App.4th 1288, 1297.)

The City argues that in most cases, a petitioner may not argue excusable neglect when he or she fails to take any action in pursuit of the claim within six-months. Some cases hold that a petitioner must make a diligent effort to obtain counsel before the six month claim period expires in order to show excusable neglect. (See, e.g. *Ebersol v. Cowan* (1983) 35 Cal.3d 427; *People ex rel. DOT v. Superior Court* (2003) 105 Cal.App.4th 39.) Those cases, however, involve situations where the petitioner did not discover that there was a public entity potentially responsible for the injury and also failed to contact an attorney until after the claim expired. But "even the failure to obtain legal advice will be excused when a different course of action is reasonably prudent. Circumstances which would 'trap the unwary' may suffice." (*Bertorelli v. City of Tulare* (1986) 180 Cal.App.3d 432, 439.)

The City relies on *Harrison v. County of Del Norte* (1985) 168 Cal.App.3d 1 to argue that Petitioner is not entitled to relief in this case. In *Harrison*, the claimant was injured while working on a county project that was managed by the state. The claimant did not submit a government claim to either public entity within the time limit. He hired an attorney after the time to submit a claim had

expired. Claimant argued for excusable neglect because he was unsophisticated in legal matters and thought his only remedy was workers' compensation. He also argued that he was hospitalized three times following the accident and spent the remainder of his recuperation period at home, unable to attend to his business affairs. The court found the facts did not show excusable neglect. (*Id.* at 7.)

Here Plaintiff thought her injuries would heal with physical therapy and in that event, she had not considered legal action. It was only when Plaintiff learned that she required more extensive treatment that she looked into taking legal action. In *Harrison* the claimant thought he was limited to workers' compensation, which shows that he was considering legal options for compensation, but mistakenly thought those options were limited. Here, by contrast, Plaintiff opted to wait and see if she would heal without needing extensive medical care and thus, she did not think she would need compensation at the time of her injury. Plaintiff's decision to try physical therapy before considering legal options was reasonably prudent.

The Court finds that Plaintiff's failure to timely submit a government claim was the result of mistake or excusable neglect because Plaintiff did not realize that she should have taken legal action to preserve her rights even if she hoped to heal with physical therapy. The City has not shown any prejudice from the failure to timely submit a government claim. Therefore, the petition from relief from timely filing a government claim is granted.

12. 9:00 AM CASE NUMBER: C25-02532
CASE NAME: ESTATE OF HENRY M. SIEGEL VS. JENNIFER SIEGEL
HEARING ON PETITION IN RE: PETITION TO ENFORCE SETTLEMENT
FILED BY:

TENTATIVE RULING:

The Plaintiff's unopposed Petition to Enforce Settlement is **denied** without prejudice.

Fundamentally, there is no proof that defendant was ever served with a copy of the Summons and Petition in this matter. The court has no personal jurisdiction over the defendant at this time.

In addition, Plaintiff has neglected to show proof of service of a notice of motion, the motion itself, and the papers on which the petition is based, on the defendant. Once the defendant is properly before the court, the court urges Plaintiff to take note of the requirements for the form of a motion contained in CCP § 1010.

13. 9:00 AM CASE NUMBER: MSC19-01794
CASE NAME: MURPHY VS LU
HEARING ON SUMMARY MOTION ON 2ND AMENDED CROSS-COMPLAINT
FILED BY: WEE, BILLY

TENTATIVE RULING:

Before the Court is Cross-Defendants Billy Wee, Eileen Wee, and Wee Yoga, LLC's Motion for Summary Judgment or, in the alternative, Summary Adjudication on Cross-Complainant Jennifer Lu's Second Amended Cross-Complaint.

Cross-Defendants Billy Wee, Eileen Wee, and Wee Yoga, LLC may be collectively referred to as “Cross-Defendants” herein. Ms. Lu may be referred to as “Cross-Complainant” herein.

Cross-Defendants’ unopposed Request Judicial Notice is **granted**. (Cal. Evid. Code § 452 (d).)

Initial Considerations

Electronic Bookmarks

The Opposition includes the declaration of Jennifer Lu which includes over 200 pages of exhibits. The Declaration references one exhibit – Exhibit A. The only exhibit attached to the declaration is labeled as Exhibit I. The document also includes over two hundred links to each individual page of the attachments. None of the links provide any information as to what it is linking to, instead only being labeled as “IMG_[number].” “[E]lectronic exhibits **must include** electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit.” (Cal. R. Ct. 3.1110 (f)(4) emphasis added.)

The Declaration fails to conform to Rule 3.1110. Counsel is reminded to comply with the Rules of Court when submitted papers to the Court.

Separate Statement

The separate statement “must state in numerical sequence the undisputed material facts....” (Cal. R. Ct. 3.1350 (d)(3).) Cross-Complainant’s separate statement fails to number its purported material facts, making it difficult for the Court to reference which material facts are being discussed at any given time. The Court will reference the UMFs by number, even though they are not numbered in the Separate Statement. The Parties will need to do their own work to correlate the reference to the correct material fact.

Opposition Separate Statement

To begin with, the Opposition Separate Statement must set out the material fact of the moving party “below which must be set out the evidence said by the moving party to establish that fact, complete with the moving party’s references to exhibits.” (Cal. R. Ct. 3.1350 (f)(1).) Cross-Complainant’s Opposition Separate Statement sets forth moving party’s statement of fact but fails to set forth the evidence in support “complete with the moving party’s references to exhibits.” This failure to include that crucial information made the Court’s work more difficult by requiring it to refer to two documents to determine what evidence was supporting moving party’s statements.

In Opposition, Cross-Defendant filed not only a Response to Cross-Defendants’ Separate Statement but also another document identified as her own Separate Statement of Disputed Facts. California Rules of Court, Rule 3.1350 (f)(3) makes clear that if an opposing party contends that additional material facts are pertinent to the disposition of the motion, “those facts must be set forth in the separate statement,” *i.e.* in the separate statement in opposition to the motion. In other words, they should be contained in a single document, not in a distinct filing.

In addition, the Separate Statement in Opposition to Motion must be in the two-column format specified in the Rule. The left side of the document must include, in numerical sequence, the material

fact stated first with the evidence that establishes that fact following. The right side of the document is left blank to allow the other party to respond. The Rule provides an example of the format:

Supporting statement:

ISSUE 1—THE FIRST CAUSE OF ACTION FOR NEGLIGENCE IS BARRED BECAUSE PLAINTIFF EXPRESSLY ASSUMED THE RISK OF INJURY

Moving Party's Undisputed Material Facts and Supporting Evidence: Opposing Party's Response and Supporting Evidence:

1. Plaintiff was injured while mountain climbing on a trip with Any Company USA. Plaintiff's deposition, 12:3-4.
2. Before leaving on the mountain climbing trip, plaintiff signed a waiver of liability for acts of negligence. Smith declaration, 5:4-5; waiver of liability, Ex. A to Smith declaration.

Opposing statement: _____

Cross-Defendant's Separate Statement fails to comply with this Rule. Instead, the Separate Statement is a single list of purported facts – without space for a response. Many of the facts also appear to include the evidence in support in the middle of the purported fact – instead of at the end as required by the Rule. The purported facts also include arguments related to the purported fact – which is inappropriate in a separate statement.

Counsel is reminded to comply with all applicable Rules of Court. The Court recognizes and appreciates Cross-Defendants' counsel's compliance with the above rules.

Factual and Procedural Background

Plaintiff/Cross-Defendant Michael Murphy and Defendant/Cross-Complainant Jennifer "Jenny" Ying Lin Lu were in a long-term relationship and engaged to be married. Sometime in 2017, they decided to end their relationship. During the break-up, they entered into an Agreement ("Separation Agreement") related to Plaintiff Murphy's "desire[] to provide a vehicle for Lu to have the opportunity to become financially independent." (Keledjian Decl. Ex. B.)

The Separation Agreement noted that Mr. Murphy (or an entity owned and controlled by him) was the 50% owner of Bikram Yoga Studio in San Ramon (the "Studio"). (*Ibid.*) Bikram San Ramon LLC, which was owned by Billy Wee, owned the other 50% of the Studio. (*Ibid.*) Mr. Murphy had a right to later acquire the other 50% ownership in the Studio. (*Ibid.*)

The Separation Agreement indicated that Ms. Lu desired to "learn the operation of Studio and eventually become the manager of Studio." (*Ibid.*) If Ms. Lu was able to "learn the operation of the Studio and to have it operate at a profit then Murphy [would] give her an ownership interest in the Studio..." (*Ibid.*)

Accordingly, per the Separation Agreement, Ms. Lu began working at the Studio to learn about its operations and how to run such a business. She began working as a manager of the Studio in approximately September 2017. (UMF 6; Lu Depo at 11:20-23.) Mr. and Mrs. Wee confirm that Ms. Lu started "training" at the Yoga Studio in mid to late 2017. (Wee Decls. ¶ 9.)

As Ms. Lu describes it, from approximately September 2017 to May or June 2018 she worked full-time at the Studio. (Lu Decl. ¶ 3.) She regularly worked at least eight hours per day, five days per week. (*Ibid.*) She also did additional hours on weekend as needed. (*Ibid.*) She contends that she "performed core managerial and operational duties essential to the Studio's business, including opening and

closing the Studio, managing daily operations, scheduling classes and instructors, supervising staff, handling customer memberships and issues, processing payments, managing supplies, and addressing operational problems.” (Lu Decl. ¶ 4.)

Per the Separation Agreement, Mr. Murphy agreed to pay Lu \$6,000 per month “in order to assist her to pay her current living expenses while she is learning the business of Studio.” (Keledjian Decl. Ex. B.) The Separation Agreement went on to state:

The parties intend that said amount be paid by Murphy individually and not by Studio so that Lu’s training will not be at the expense of Studio. Lu shall not be entitled to receive any compensation from Studio except as is hereinbelow provided. (*Ibid.*)

It is undisputed that during the time Ms. Lu was training to be a manager at the Studio she did not receive any payments from the Studio. (UMF 14.) Instead, it appears that the \$6,000 per month that she received was paid by Mr. Murphy. (Lu Decl. ¶ 6.) The actual checks were issued by M&M Automotive Volkswagen Broadway. (Lu Depo. at 41:5-14.) Ms. Lu also never received a W2 Wage and Tax Statement or Form 1099 from the Studio. (UMF 17; Lu Decl. ¶¶ 9-10.)

Mr. Murphy emailed Billy Wee on May 8, 2018, with a cc including Ms. Lu, indicating that Ms. Lu was “no longer affiliated, nor employed” by him. (UMF 20.) It is undisputed that Ms. Lu’s last day working at/for the Studio was May 8, 2018. (UMF 20; Keledjian Decl. Ex. D: Lu RFA Response No. 9.)

Thereafter, on August 30, 2019, Mr. Murphy filed a Complaint against Ms. Lu for breach of contract, conversion, and unjust enrichment. Ms. Lu filed a Cross-Complaint on October 31, 2019, alleging eight causes of action against Mr. Murphy. On June 15, 2021, Ms. Lu filed a First Amended Cross-Complaint which for the first time included Cross-Defendants Bill Wee and the Studio. The operative Second Amended Cross-Complaint was filed on February 2, 2023. The SAC added Eileen Wee as a Cross-Defendant and clarified the name of the corporate defendant as Wee Yoga LLC which was doing business as Bikram Yoga Studio.

Standard

Summary judgment is proper if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. (Code Civ. Proc. § 437c(c).) A moving defendant satisfies the initial burden of showing that a cause of action has no merit if he shows that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c (p)(2).)

Once the defendant meets that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. (*Ibid.*) The plaintiff then has the burden of demonstrating that triable issues of material fact exist. (*Ibid.*)

A party may move for summary adjudication when they contend that one or more causes of action within an action has no merit. (CCP §437c(f)(1).) A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. (*Ibid.*) In all procedural respects, a motion for summary adjudication proceeds as a motion for summary judgment. (CCP §437c(f)(2).)

Material facts are those that relate to the issues in the case as framed by the pleadings. (*Serri v. Santa Clara University* (2014) 226 Cal.App.4th 830, 860, citations omitted.) “In ruling on the motion, the court must consider all of the evidence and all of the inferences reasonably drawn therefrom, and must view such evidence and such inferences, in the light most favorable to the opposing party.” (*Aguilar, supra*, 25 Cal.4th at 843 (internal citations and quotations omitted); see also, Code of Civ. Proc. §437c(c).)

Analysis

The operative SAC alleges four causes of action against the Moving Cross-Defendants. Causes of action nine, ten, and eleven assert various Labor Code violations, and cause of action twelve asserts a violation of Business and Professions Code section 17200 et seq. (UCL). The UCL claim is based on the Labor Code violations.

Labor Code Violations

The Moving Cross-Defendants move for summary judgment/adjudication as to each of the Labor Code causes of action based on the running of the applicable statutes of limitation. (See Notice.) At least as to these causes of action, Cross-Defendants do not argue that Ms. Lu was not an employee of the Studio and therefor not entitled to wages in the first instance. As such, for purposes of these claims the Court will presume she was an employee and entitled to wages as such. The Court will only address Ms. Lu’s potential status as an employee with relation to the UCL claim below.

In accordance with California Code of Civil Procedure § 338 (a), suit must be commenced within three years when an action “upon a liability created by statute, other than a penalty or forfeiture,” is asserted. (Cal. Code Civ. Proc. § 338 (a).) Labor Code violations for statutory penalties (such as Ms. Lu’s claims under Labor Code section 226) are subject to a one-year statute of limitations. (Cal. Code Civ. Proc. § 340 (a).) Thus, all of Ms. Lu’s Labor Code claims that are not seeking statutory penalties (causes of action nine, ten and eleven) are subject to a three-year statute of limitations.

As noted above, Ms. Lu’s last day working for the Studio was May 8, 2018. As such, her claims for unpaid wages accrued on or before that date. “A cause of action accrues at the moment when the party alleging injury is entitled to ‘begin and prosecute an action thereon.’” (*Pollock v. Tri-Modal Distribution Services, Inc.* (2021) 11 Cal.5th 918, 930-31.) “Generally, the right to bring and prosecute an action arises immediately upon the commission of the wrong claimed....” (*City of Pasadena v. Superior Court* (2017) 12 Cal.App.5th 1340, 1348.) “Stated differently, a ‘cause of action accrues ‘when [it] is complete with all of its elements’ – those elements being wrongdoing, harm, and causation.’” (*Ibid.* quoting *Pooshs v. Philip Morris USA, Inc.* (2011) 51 Cal.4th 788, 797.)

The Studio’s alleged failures to pay Ms. Lu all occurred prior to her last day. In addition, her claim for failure to timely pay her wages upon her termination accrued on May 8, 2018. Under Labor Code § 201, if an employee is discharged, “the wages earned and unpaid at the time of discharge are due and payable immediately.” (Cal. Labor Code § 201 (a).)

Based on the above, Ms. Lu’s Labor Code claims accrued as of May 8, 2018, at the latest. Given the three-year statute of limitations, Ms. Lu had until May 8, 2021, to file her claims related thereto. Ms.

Lu first asserted her Labor Code claims against the Cross-Defendants in her FAC filed on June 15, 2021. Thus, on their face, Ms. Lu's Labor Code claims are barred by the statute of limitations.

Delayed Discovery

Ms. Lu argues that the statute of limitations was tolled based on the 'delayed discovery' doctrine. "The [delayed] discovery rule provides that the accrual date of a cause of action is delayed until the plaintiff is aware of her injury and its negligent cause." (*Jolly v. Eli Lilly & Co.* (1988) 44 Cal.3d 1103, 1109.) "A plaintiff is held to her actual knowledge as well as knowledge that could reasonably be discovered through investigation of sources open to her." (*Ibid.*)

"Under the discovery rule, the statute of limitations begins to run when the plaintiff suspects or should suspect that her injury was caused by wrongdoing, that someone has done something wrong to her." (*Id.* at 1110.) The limitations period "begins once the plaintiff 'has notice or information or circumstances to put a reasonable person *on inquiry*....'" (*Ibid.*) "Once the plaintiff has a suspicion of wrongdoing, and therefore an incentive to sue, she must decide whether to file suit or sit on her rights. So long as a suspicion exists, it is clear that the plaintiff must go find the facts; she cannot wait for the facts to find her." (*Ibid.*)

Ms. Lu argues that she was repeatedly told that her \$6,000 monthly payment constituted her 'salary' for her work at the Studio and that the Studio would not issue formal payroll checks because Murphy was personally funding her compensation as part of their Separation Agreement. (Opp. at 10:17-21.) Instead, Ms. Lu contends she only learned that the \$6,000 monthly payments she was receiving were not wages paid by the Studio but rather personal payments from Mr. Murphy in 2021 when Mr. Murphy testified to this effect. (Opp. at 11:5-17.)

The opposition does not cite any evidence to support the above assertions. (See citations) In particular, there is no evidence that Ms. Lu was ever told that she would not be given 'formal payroll checks' from the Studio.

Cross-Defendants, however, present evidence that Ms. Lu admitted that she knew she never received a paycheck from the Studio, never asked for a paycheck, and never received any necessary tax-documents from the Studio. (Keledjian Decl. Exs. D, F at Resp. 1-2, 23.) Ms. Lu even testified at her deposition that she knew the Studio was not paying her, but instead Mr. Murphy was paying her through a separate entity.

Q. Okay. So you knew that the studio was not going to be paying you anything, correct?

A. Yes. Because at that time involve Billy and he – he – I don't know. He told me he would pay me. That's why he paid (unintelligible).

Q. That's why who paid?

A. (Unintelligible) Dealership in Oakland pay me.

Q. Okay. So you're referring to M&M Automotive Volkswagen Broadway?

A. That's where the check came from.

The above shows that Ms. Lu was aware that she was not being paid by the Studio. It also makes clear that the checks she received during the relevant time came from a separate entity, *i.e.* Volkswagen of Oakland. (See Keledjian Decl. Ex. D, RFA Response 3.)

In other words, during the relevant time Ms. Lu knowingly never received a paycheck from the Studio for the work she alleges she performed for it. Despite this, Ms. Lu never asked for a paycheck or inquired into why she was not receiving a paycheck for her work – in addition to the \$6,000 per month she alleges was a gift from Mr. Murphy.

Ms. Lu started ‘working’ at the Studio in September 2017 and was ‘terminated’ on May 18, 2018. At no time during that nine-month period did she ever receive a paycheck from the Studio. Any reasonable person that was working for a company and never received a paycheck from them would be on notice that something was amiss. Ms. Lu was on inquiry notice at least as early as October 2017 that she was not being properly compensated by the Studio. Ms. Lu’s claims that she did not learn that she was not being paid by the Studio until the deposition of Mr. Wee is not reasonable.

Based on the above, Ms. Lu has failed to show that the delayed discovery rule applies in this matter.

Continuing Violation Doctrine

Ms. Lu appears to argue that the Studio’s labor code violations “from ongoing misclassification, failure to pay wages, and failure to provide wage statements constitute violations, extending the limitations period until the last act – in this case until Lu’s termination in May/June 2018,” citing *Richards v. CH2M Hill, Inc.* (2001) 26 Cal.4th 798. (Opp. at 11:25-12:1.) Notably, Ms. Lu does not provide a pin cite to any particular part of *Richards*, nor any discussion of what the ‘continuing violation doctrine’ is or how it applies.

“The continuing violation doctrine aggregates a series of wrongs or injuries for purposes of the statute of limitations, treating the limitations period as accruing for all of them upon commission or sufferance of the last of them.” (*Aryeh v. Canon Business Solutions, Inc.* (2013) 55 Cal.4th 1185, 1192.) The doctrine serves a few equitable purposes. (*Ibid.*) “Some injuries are the product of a series of small harms, any one of which may not be actionable on its own.” (*Ibid.*) “Those injured in such a fashion should not be handicapped by the inability to identify with certainty when harm has occurred or has risen to a level sufficient to warrant action.” (*Ibid.*) The doctrine does not, however, apply to discrete, independently actionable wrongs. (*Ibid.*; see also *AMTRAK v. Morgan* (2002) 536 U.S. 101, 113 [holding that “discrete discriminatory acts are not actionable if time barred, even when they are related to acts alleged in timely filed charges.”].)

Here, each time Ms. Lu was not issued a paycheck is a discrete, actionable wrong. As such, the ‘continuing violation doctrine’ does not apply.

Even if the doctrine did apply, Ms. Lu concedes that the Studio’s actions extend the limitations period ‘until the last act’ – *i.e.* Lu’s termination on May 18, 2018. As discussed above, given the three-year statute of limitation Ms. Lu would have needed to assert her Labor Code claims by May 18, 2021, based on that date. Ms. Lu failed to do so, initially asserting those claims in her FACC which was filed on June 15, 2021 – almost one month too late.

Relation Back

Ms. Lu argues: “Even if the Court declines to apply delayed discovery or the continuing violation doctrine, Lu’s labor claims relate back to her original Cross-Complaint filed in 2019, because all claims arise out of the same core facts....” (Opp. at 12:10-12.) Ms. Lu provides no legal citation to support her argument.

Every memorandum of points and authorities “must contain a statement of facts, *a concise statement of the law*, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced.” (Cal. R. Ct. 3.1113 (b).) Fairness dictates that all legal arguments be presented in the memorandum of points and authorities. (*Nationwide Ins. Co. of America v. Tipton* (2023) 91 Cal.App.5th 1355, 1365.) Rule 3.1113 prevents the “trial court from being cast as a tacit advocate for the moving party’s theories by freeing it from any obligation to comb the record and the law for factual and legal support that a party has failed to identify or provide.” (*Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal.App.4th 927, 934.)

It is not the Court’s position to supply the legal support for an argument raised by a party without citation to any law in support. “A trial court may decline to consider an argument that does not comply with rule 3.1113 of the California Rules of Court.” (*Nationwide Ins.*, *supra*, 91 Cal.App.5th at 1365.) On this basis alone the Court can disregard Plaintiff’s argument. In addition, Plaintiff’s argument fails substantively.

“The general rule is that an amended complaint that adds a new defendant does not relate back to the date of filing the original complaint and the statute of limitations is applied as of the date the amended complaint is filed, not the date the original complaint is filed.” (*Woo v. Superior Court* (1999) 75 Cal.App.4th 169, 176 numerous citations omitted.) “A recognized exception to the general rule is the substitution under section 474 of a new defendant for a fictitious Doe defendant named in the original complaint as to whom a cause of action was stated in the original complaint.” (*Ibid.*) “If the requirements of section 474 are satisfied, the amended complaint substituting a new defendant for a fictitious Doe defendant filed after the statute of limitations has expired is deemed filed as of the date the original complaint was filed.” (*Ibid.*)

Ms. Lu filed her initial Cross-Complaint on October 31, 2019. On June 15, 2021, Ms. Lu filed a First Amended Cross-Complaint. Ms. Lu did not file a Doe Amendment under Code of Civil Procedure section 474 to substitute the Studio as a Doe Defendant. As such, the relation back doctrine does not apply.

UCL Claim

The “UCL has a four-year statute of limitations, which applies even if the borrowed statute has a shorter limitations statute.” (*Blanks v. Seyfarth Shaw LLP* (2009) 171 Cal.App.4th 336, 364.) “Thus, the general rule is that a UCL cause of action borrows the substantive portion of the borrowed statute to prove the ‘unlawful’ prong of that statute, but not the limitations procedural part of the borrowed statute.” (*Ibid.*)

The Court’s above discussion of the alleged Labor Code violation presumed that Ms. Lu was an employee – since the only issue raised by Cross-Defendants with respect to those claims was related

to the statute of limitations. Under the above analysis, Ms. Lu's Labor Code claims arose at the latest as of May 8, 2018 – her last day of work. Under the UCL, that means she would be required to have asserted her claims by May 8, 2021. The FACC, which first asserted the claims against moving Cross-Defendants, was filed on June 15, 2021. Thus, if there are valid Labor Code violations, while they cannot be separately asserted given the statute of limitations issues, they can be used to maintain a UCL claim.

Was Ms. Lu an Employee?

Cross-Defendants argue that Ms. Lu was a part-owner of the Studio and not an employee. They cite the Separation Agreement which states that Mr. Murphy would give Ms. Lu “the sum of \$6,000 per month in order to assist her to pay her current living expense while she is learning the business of Studio.” It goes on to state that that amount is to be paid by Mr. Murphy individually and that Ms. “Lu shall not be entitled to receive any compensation from Studio except as is hereinbelow provided.” During the relevant time, Ms. Lu never requested a paycheck from the Studio, nor any tax documents related to being employed by the Studio. Cross-Defendants cite to instances where Ms. Lu referred to herself as an ‘owner’ or ‘co-owner’ of the Studio and performed task commensurate with being an owner and not an employee. (Motion at 9:16-20.)

The Separate Agreement, however, makes clear that “Murphy or an entity owned and controlled by Murphy owns 50% of” the Studio pursuant to an agreement with Billy Wee, who, through another entity, owned the other 50%. (Agreement at C.) Mr. Murphy had a right to acquire the remaining 50% interest in the Studio over time pursuant to the agreement with Mr. Wee. (*Id.* at D.) There is no mention anywhere that Ms. Lu was an owner of the Studio when the parties entered into the agreement.

Instead, the Agreement makes clear that the intent of the parties was that Ms. Lu would **potentially** become an owner at some point in the future. The Agreement goes on to state:

“The parties intend that if Lu is able to learn the operation of the Studio and to have it operate at a profit then Murphy **will give to her** an ownership interest in the Studio as is provided herein below.” (*Id.* at H.)

The Separate Agreement indicates that if Ms. Lu “is able to achieve the levels of income and profit described above by June 30, 2018 then Murphy **shall transfer** to her a 50% ownership in the Studio at no cost to her.” (*Id.* at ¶ 5.)

These provisions make clear that Ms. Lu did not have any ownership interest in the Studio at the beginning of the arrangement. Instead, it was agreed that Ms. Lu would “commence working at Studio and to perform such duties at Studio as the current operators assign to her.” (*Id.* at ¶ 1.) In addition, UMF 7 specifically states that Ms. Lu believed that she was training at the Studio “with the expectation **to be an owner in the future**, as set forth in the Agreement.” In her response to that UMF, Ms. Lu argues that “[e]xpectation of future ownership does not eliminate wage obligations for present labor.”

In opposition, Ms. Lu presents her own declaration indicating that she worked at least eight hours a day, five days a week during the relevant time – and occasionally on weekends as needed. She

performed “core managerial and operational duties essential to the Studio’s business...” She also communicated regularly with the Wee Cross-Defendants regarding running the Studio. None of this is disputed.

Even if Ms. Lu could be considered an ‘owner’ of the Studio during the relevant time, Cross-Defendants present no legal authority indicating that such a designation would mean that such an individual is still not entitled to being paid a wage for their work for the Studio. Cross-Defendants presume that an owner cannot be classified as an ‘employee’ of their own company but cite no legal authority to support such a claim.

It also appears that Cross-Defendants contend that the Separation Agreement somehow waives Ms. Lu’s rights to receive wages from the Studio for her work there. They contend that Mr. Murphy agreed to support her while she learned how to operate the Studio. Cross-Defendants cite no law to support a claim that a party can ‘waive’ their rights to be paid a wage under the Labor Code for work performed for the employer via a separate agreement with a third-party to separately provide them with a voluntary monthly payment.

Based on the above, Cross-Defendants have failed to meet their initial burden to show that there are no disputed material facts regarding Ms. Lu’s position at the Studio. The evidence clearly shows that she was not an owner during the relevant times. It is also undisputed that she performed work at/for the Studio. Under the “ABC test,” as adopted by the California Supreme Court in *Dynamex Operations West, Inc. v. Superior Court* (2018) 4 Cal.5th 903, “a worker is presumptively an employee, and the hiring entity bears the burden to show otherwise.” (*Gonzales v. San Gabriel Transit, Inc.* (2019) 40 Cal.App.5th 1131, 1154.)

Additional Arguments

Cross-Defendants also argue that Ms. Lu has failed to show an ‘injury in fact’ to support the UCL claim. To bring an UCL claim, and plaintiff must show that they “have ‘lost money or property’ to have standing to sue.” (*Kwikset Corp. v. Superior Court* (2011) 51 Cal.4th 310, 323.) “The plain import of this is that a plaintiff now must demonstrate some form of economic injury.” (*Ibid.*) “There are innumerable ways in which economic injury from unfair competition can be show.” (*Ibid.*) “A plaintiff may (1) surrender in a transaction more, or acquire in a transaction less, than he or she otherwise would have ... (3) be deprived of money or property to which he or she has a cognizable claim...” (*Ibid.*)

Here, Ms. Lu asserts, and presents evidence, that she worked for the Studio and did not receive any compensation for that work. As such, she was ‘deprived of money to which she has a cognizable claim.’ Not being paid for work performed is “some form of economic injury.” As such, Cross-Defendant has failed to meet its burden to show that there is a disputed material fact related to Ms. Lu’s economic injury.

Cross-Defendants’ argument that the UCL claim is barred under the rationale of *Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co.* (1999) 20 Cal.4th 163 is without merit. In *Cel-Tech*, the Court noted that while the UCL’s “scope is sweeping, it is not unlimited.” (*Id.* at 182.) “When specific legislation provides a ‘safe harbor,’ plaintiff’s may not use the general unfair competition law to assault that harbor.” (*Ibid.*) The alleged conduct at issue in *Cel-Tech* was deemed

to be privileged under Civil Code § 74 (b). As such, the plaintiff could not attempt to make such privileged conduct the basis of a UCL claim.

Here, the basis of the UCL claim is the violation of several sections of the Labor Code. Actions which are explicitly prohibited by the Code. This is the exact opposite of some action which is explicitly deemed privileged.

Cross-Defendant also argues that the UCL claim should be barred based on the doctrine of unclean hands. Initially, unclean hands in an affirmative defense. (*Wilson v. S.L. Rey, Inc.* (1993) 17 Cal.App.4th 234, 244.) In reviewing Mr. Murphy's answer to the SACC, he does not raise the affirmative defense of unclean hands. "The pleadings play a key role in a summary judgment motion and 'set the boundaries of the issues to be resolved at summary judgment.'" (*Jacobs v. Coldwell Banker Residential Brokerage Co.* (2017) 14 Cal.App.5th 438, 444.) If a defendant does not assert a particular affirmative defense in its answer, the court cannot consider it. (*Lopez v. Baca* (2002) 98 Cal.App.4th 1008, 1019; *Jacobs*, supra, 14 Cal.App.5th at 444.)

Even if the affirmative was properly plead, Cross-Defendant's Notice of Motion does not indicate that it is moving based on this affirmative defense. Instead, the Notice of Motion indicates that "Cross-Complainant's Twelfth Cause of Action for unfair business practices fails to state of cause of action." (Notice at ii:12-13.) "A basic tenant of motion practice is that the notice of motion must state the grounds for the order being sought [cites], and the court generally may consider only the grounds stated in the notice of motion." (*Kinda v. Carpenter* (2016) 247 Cal.App.4th 1268, 1277.) "The purpose of the notice requirement 'is to cause the moving party to 'sufficiently define the issues for the information and attention of the adverse party and the court.'" (*Ibid.*) "If summary adjudication is sought ... the specific cause of action, **affirmative defense**, or issues of duty **must be stated specifically in the notice of motion**" (Cal. R. Ct. 3.1350 (b).) Based on the above, Cross-Defendants have waived any arguments based on the affirmative defense of unclean hands.

Based on the above, Cross-Defendants have failed to meet their burden to show that there is no triable issue as to any material fact related to the UCL cause of action.

Conclusion

Cross-Defendants' motion for summary adjudication is **granted** as to the Labor Code violation causes of action 9, 10, and 11. It is **denied** as to the twelfth cause of action for the UCL violation.

Evidentiary Issues

The Court need only rule on those objections to evidence that were material to the disposition of the MSJ/MSA. (See CCP § 437c(q).)

Cross-Complainant's Objections to Evidence:

All written objections must, among other things, "[q]uote or set forth the objectionable statement or material." (Cal. R. Ct. 3.1354 (b)(3).) Cross-Complainant's objections reference particular paragraphs of the declarations, often including multiple paragraphs in a single objection. She then merely

summarizes which portions of those paragraphs she is objecting to – instead of quoting the specific statements to which she objects.

It is “well within” the trial court’s discretion to overrule any objections that fail to meet the requirement under Rule 3.1354 (b)(3) to “quote or set forth the objectionable statement or material” objected to. (*Schmidt v. Citibank* (2018) 28 Cal.App.5th 1109, 1118.) Given the improper objections, the Court overrules all of Cross-Complainant’s objections.

Cross-Defendants’ Objections to Lu Declaration

“Each written objection must be numbered consecutively ...” (Cal. R. Ct. 3.1354 (b).) As with the Separate Statement, Cross-Defendants fail to number their objections, instead just referencing paragraph numbers of the Lu Declaration. Counsel are reminded – again – to comply with the Rules of Court. Also, while Cross-Defendants object to individual paragraphs of the Lu Declaration separately, many of those paragraphs contain multiple sentences and/or references to exhibits. Thus, it is difficult for the Court to determine what specific part of the statement is being objected to. As such, if any portion of the paragraph is proper, the Court will overrule the objection.

Objection 1 : Overruled.

Objection 2: Overruled

Objection 3: Overruled.

Objection 4: Overruled.

Objection 5: Overruled.

Objection 6: Sustained (Cal. Evid. Code § 702, 1200.)

Objection 7: Overruled.

Objection 8: Overruled.

Objection 9: Overruled.

Objection 10: Overruled.

Objection 11: Overruled.

Objection 12: Overruled.

Objection 13: Overruled.

Objection 14: Overruled.

14. 9:00 AM CASE NUMBER: MSC19-02596

CASE NAME: DEBRA WALKER VS. TROY MARTINEZ

***HEARING ON MOTION IN RE: DISMISS FOR FAILURE TO BRING ACTION TO TRIAL**

FILED BY: MARTINEZ, TROY

TENTATIVE RULING:

The hearing is continued on the court’s motion to Friday, February 27, 2026 at 9:00 am in Department 32 for two reasons: lack of proof of service of moving papers on Plaintiff, and late filing of the opposition by Plaintiff. Each side has committed procedural errors.

Code of Civil Procedure § 583.360 provides, “An action shall be dismissed by the court on its own motion or on motion of the defendant, *after notice to the parties*, if the action is not brought to trial within the time prescribed in this article.” (Emphasis added.) Here there is no proof of service on the

Plaintiff of notice as required by § 583.360. Per Local Rule 3.52(a), proofs of service of Notice of Motion are required to be filed in the Clerk's Office not less than two calendar days preceding the time set for the hearing.

Plaintiff filed an untimely opposition on January 20, 2026. Local Rule 3.52(d) requires opposition papers to be filed at least five court days prior to the hearing. The opposition was due to be filed January 15, 2026 (due to the court holiday on January 19, 2026). Local Rule 3.52(d) also authorized the court "to act on the matter without the consideration of the document so filed." The court notes that the Plaintiff's opposing papers are not accompanied by a proof of service.

In the interest of justice, the court will continue the hearing to Friday, February 27, 2026 at 9:00 am in Department 32. Defendants are ordered to serve Plaintiff with notice of the new hearing date, this order and all motion papers required under CCP § 1010 by close of business (5:00 pm) on January 23, 2026. All parties to file proofs of service of their papers.

15. 9:00 AM CASE NUMBER: N25-1916
CASE NAME: CLAIM OF:RENE VAN BUSKIRKRENE VANBUSKIRK
***HEARING ON MINOR'S COMPROMISE**
FILED BY:
TENTATIVE RULING:

The Petition to Approve Compromise of Minor's Claim is approved. The court will execute the proposed orders as lodged on September 29, 2025.

Discovery Law & Motion

16. 9:01 AM CASE NUMBER: C23-00060
CASE NAME: DARYL MERRITT VS. ANDREA MERRITT
***HEARING ON MOTION FOR DISCOVERY COMPEL ANDREA MERRIT TO APPEAR FOR DEPOSITION**
FILED BY: MERRITT, DARYL
TENTATIVE RULING:

PARTIES TO APPEAR.

17. 9:01 AM CASE NUMBER: C23-02669
CASE NAME: ALDVIN SCHAKANOVICH VS. LINDA WILLIAMS
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO PLAINTIFF'S REQUEST FOR ADMISSIONS, SET ONE (1)**
FILED BY: SCHAKANOVICH, ALDVIN
TENTATIVE RULING

Plaintiff's Motion to Compel Further Responses to Requests for Admissions is granted in part and denied in part.

Request for Admission No. 4: Admit that on December 5, 2021, through an email at 10:20 p.m., YOU recommended to ADIAN to wait until after pre-market repairs to conduct home inspections.

Motion to compel further responses is granted. Defendant must admit or deny. The court finds the Defendant's original and supplemental responses are evasive.

Request for Admission No. 9: Admit that YOU observed evidence of water damage in the HALTEN PROPERTY during YOUR representation of ADIAN in the sale of the HALTEN PROPERTY.

Motion to compel further responses is granted. Defendant's objection that the term water damage is undefined and unintelligible is overruled. The term "water damage" is not employed used as a technical term, nor as a term of art—it is plain English. The call of the question is whether Defendants "observed" (*i.e.*, saw) evidence of water damage. The supplement response is evasive and non-responsive.

Request for Admission No. 13: Admit that during YOUR representation of ADIAN, YOU at one point believed that the fair market value of the HALTEN PROPERTY was \$1,050,000.

Motion to compel further responses is denied. Although the Defendant's original objections were evasive and non-sensical (arguing that #13 does not request the admission of a material fact), Defendants have answered in their supplemental response that #13 is denied.

Request for Admission No. 18: Admit that YOU were aware prior to CLOSE OF ESCROW that the HALTEN PROPERTY had roof leaks during YOUR representation of ADIAN.

Motion to compel further responses is denied. Defendants have responded, "Denied." Defendants assert they did not have "actual, firsthand" knowledge of roof leaks, but that they were "informed" by RW Construction that there were signs of a previous leak. Defendants are taking the position that this does not constitute being "aware" of roof leaks. Should Plaintiffs succeed in proving Defendants were "aware" of roof leaks at trial, Plaintiffs may seek to recover costs of having to prove that Defendants were "aware" that the property had roof leaks.

Request for Admission No. 19: Admit that YOU did not disclose the presence of roof leaks at the HALTEN PROPERTY in Exhibit "1."

Motion to compel further responses is granted. Defendants' purported denial based on whether they possessed actual firsthand knowledge of roof leaks is inapposite. The call of the

request is whether there was a disclosure in a particular document. The original objection and supplemental response are non-responsive and evasive.

Request for Admission No. 21: Admit that YOU did not disclose the existence of a leak above the dining room in the HALTEN PROPERTY in Exhibit "1."

Motion to compel further responses is granted. Defendants' answer, based on the statement "Responding Party admits that Exhibit 1 does not contain a disclosure specifically referencing a "leak above the dining room" is inconsistent with the assertion that Defendants "cannot admit or deny the demand as phrased."

The court finds on balance that the Defendants did not act with substantial justification in the controverted Requests for Admissions.

Plaintiff's attorney Gregory P. Wayland set out the calculations for the preparation of both Plaintiff's Motion to Compel Further Responses to Special Interrogatories and its Motion to Compel Further Responses to Requests for Admissions at paragraphs 23-25 of his Declaration in Support of Motion to Compel Discovery Responses filed October 1, 2025. The court finds those calculations to be reasonable given the complexity of both of the motions at issue today.

Taken together with the discussion on sanctions below in Line 18, the court awards monetary sanctions in the total amount of \$4,415.00 for both the Motion to Compel Further Responses to Special Interrogatories and the Motion to Compel Further Responses to Requests for Admissions against Defendants Linda Williams and Compass California II, Inc. pursuant to Code of Civil Procedure section 2030.300. The amount is due and payable immediately.

18. 9:01 AM CASE NUMBER: C23-02669

CASE NAME: ALDVIN SCHAKANOVICH VS. LINDA WILLIAMS

***HEARING ON MOTION FOR DISCOVERY COMPEL COMPASS CALIFORNIA II, INC.'S FURTHER RESPONSES TO SPECIAL INTERROGATORIES, SET THREE (3)**

FILED BY: SCHAKANOVICH, ALDVIN

TENTATIVE RULING

Plaintiff's Motion to Compel Further Responses to Plaintiff's Special Interrogatories, Set Three is rendered moot by the Defendant's verified supplemental response to Special Interrogatory No. 9. Special Interrogatory No. 9 requested the total number of a certain type of transactions that occurred from January 1, 2020 to the present. Defendant represents that it has provided a verified response and provided that number to Plaintiff. Plaintiff acknowledged that the interrogatory has been answered. However, a motion to compel may be heard even if tardy responses are served after the motion is filed. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th, 390, 410-411.

California Rules of Court Rule 3.1348(a) provides that sanctions may be imposed even if the opposing party provides the discovery after the motion is filed. Section 2030.300(d) of the Code of Civil Procedure provides: The court shall impose a monetary sanction under Chapter 7 ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

In support of its request for sanctions, Plaintiff stated:

“Plaintiff seeks monetary sanctions in the amount of \$4,415.00 against Defendants Linda Williams and Compass California II, Inc. pursuant to Code of Civil Procedure sections 2030.300 on the grounds that Defendants have misused the discovery process by failing to provide substantive responses to duly propounded discovery. The requested sanction amount reflects the reasonable attorneys’ fees and costs incurred by Plaintiff in preparing and bringing this Motion.”

The court notes that this exact language appears in both Plaintiff’s Motion to Compel Further Responses to Special Interrogatories and its Motion to Compel Further Responses to Requests for Admission. Section 2023.040 of the CCP provides:

A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. The notice of motion shall be supported by a memorandum of points and authorities and accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought.

Plaintiff’s attorney Gregory P. Wayland set out the calculations for the preparation of both Plaintiff’s Motion to Compel Further Responses to Special Interrogatories and its Motion to Compel Further Responses to Requests for Admissions at paragraphs 23-25 of his Declaration in Support of Motion to Compel Discovery Responses filed October 1, 2025. The court finds those calculations to be reasonable given the complexity of both of the motions at issue today.

Defendants have not presented reasons justifying its late response. Defendants originally objected that the demand presented an undue burden given the total number of transactions called for by the interrogatory. Defendants might have described the extent of the burden required to answer the interrogatory and asked for more time to come up with the information that it ultimately provided to Plaintiff. Defendants did not.

Also, the Defendants’ original objections included the standard “overly broad” and “not reasonably calculated to lead to the discovery of admissible evidence. Standing alone, these common objections were not explained or justified. The Defendant’s Opposition to Plaintiff’s Separate Statement articulated a plausible argument supporting the objection that the interrogatory calls for information that is not reasonably calculated to lead to the discovery of admissible evidence: that the Plaintiff’s claims against Compass involve a single property and the number of Compass Concierge transactions nationwide has no bearing on whether Compass properly disclosed conditions at the Plaintiff’s single

property. Defendant should have included that argument in their original objections. It is “too little, too late” to articulate that objection for the first time in the Opposition.

On this record the court cannot find that the Defendants acted with substantial justification.

The award of sanctions will be discussed in the tentative above in Line 17 concerning Plaintiff’s Motion to Compel Further Requests for Admissions.